

THE COMPANIES ACT, 2017
(SINGLE MEMBER COMPANY)
MEMORANDUM OF ASSOCIATION
OF
EAGLE SOFT (SMC-PRIVATE) LIMITED

I. NAME

The name of the Company is EAGLE SOFT (SMC-PRIVATE) LIMITED (hereinafter referred to as “the Company”).

II. REGISTERED OFFICE

The registered office of the Company shall be situated in the Province of [Province, e.g. Punjab], Pakistan, initially at [Full registered office address, city].

III. OBJECTS

The objects for which the Company is established are:

A. MAIN OBJECTS

1. To carry on the business of designing, developing, testing, deploying, hosting, licensing, marketing and maintaining computer software, mobile applications (including but not limited to Android and iOS applications), web applications, websites, and other information technology products and solutions for clients in Pakistan and abroad.
2. To develop, publish, distribute and sell software products and mobile/web applications through digital application stores and marketplaces, including Google Play Store, Apple App Store, and other similar platforms, whether on its own account or on behalf of clients.
3. To provide software development, web development, mobile application development, UI/UX design, quality assurance/testing, IT consultancy, technical support, maintenance and outsourcing services to local and foreign clients on a contractual, freelance, or project basis.
4. To provide services related to cloud computing, API development and integration, database design and management, DevOps, and related information technology infrastructure services.
5. To undertake export of IT and IT-enabled services (ITeS) and to receive foreign remittances/proceeds against software, mobile application and web development services rendered to clients outside Pakistan, in accordance with applicable laws and State Bank of Pakistan regulations.

B. ANCILLARY / INCIDENTAL OBJECTS

6. To acquire, own, lease or hire computer hardware, software licenses, office equipment and premises necessary for carrying on the business of the Company.
7. To employ, engage, or contract with programmers, developers, designers, consultants and other professionals, whether as employees, consultants, or sub-contractors, in furtherance of the Company's business.
8. To open and operate bank accounts, and merchant/payment gateway accounts in Pakistan and abroad, necessary for receipt of payments for services rendered and products sold by the Company.
9. To apply for, acquire, register and protect any trademarks, copyrights, patents or other intellectual property rights relating to the Company's software products and applications, and to enter into licensing arrangements in respect thereof.
10. To enter into and perform contracts and agreements with clients, vendors, freelancers, and other businesses, whether in Pakistan or abroad, necessary or incidental to the attainment of the above objects.
11. To do all such other lawful things as are incidental or conducive to the attainment of the above objects, subject to the provisions of the Companies Act, 2017 and rules and regulations made thereunder.

IV. LIABILITY

The liability of the member is limited by shares.

V. SHARE CAPITAL

The authorized share capital of the Company is Rs. [Amount in figures, e.g. 100,000]/- (Rupees [Amount in words] only) divided into [Number of shares, e.g. 1,000] ordinary shares of Rs. [Face value, e.g. 100]/- each, with power to increase or reduce the capital and to divide the shares in the capital for the time being into several classes, and to attach thereto respectively such preferential, deferred, qualified or other rights, privileges or conditions, in accordance with the Companies Act, 2017 and the regulations of the Company.

VI. SUBSCRIBER

I, the person whose name, address, CNIC and description is subscribed below, being the sole member, am desirous of being formed into a company in pursuance of this Memorandum of Association, and I agree to take the number of shares in the capital of the Company set opposite my name.

Sr.	Name of Subscriber &	CNIC No.	Nationality & Occupation	Residential Address	No. of Shares
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	Father's/Husband's Name				
1	[Full name of sole member] S/O, D/O, W/O [Father's/Husband's name]	[CNIC No. e.g. 00000-0000000-0]	Pakistani [Occupation, e.g. Software Engineer]	[Full residential address]	[e.g. 1,000]

Total shares taken: [Total number of shares]

Signature of Subscriber: _____

Date: [Date]

Witness Name: [Witness full name]

Witness CNIC: [Witness CNIC No.]

Witness Address: [Witness address]

Witness Signature: _____

THE COMPANIES ACT, 2017
(SINGLE MEMBER COMPANY)

ARTICLES OF ASSOCIATION

OF

EAGLE SOFT (SMC-PRIVATE) LIMITED

1. PRELIMINARY

(a) These Articles constitute the Articles of Association of the Company, a Single Member Company registered under the Companies Act, 2017 and the Single Member Companies Rules, 2003.

(b) The regulations contained in Table “F”/applicable Schedule of the Companies Act, 2017 shall apply to the Company only to the extent they are not inconsistent with, or expressly excluded or varied by, these Articles.

(c) In these Articles, “the Act” means the Companies Act, 2017 and any statutory modification or re-enactment thereof; “the Company” means EAGLE SOFT (SMC-PRIVATE) LIMITED; “Sole Member” means the single member/shareholder of the Company for the time being; “Nominee” means the person nominated by the Sole Member under Rule 4 of the Single Member Companies Rules, 2003; words importing the singular include the plural and vice versa.

2. SHARE CAPITAL

(a) The authorized, subscribed and paid-up capital of the Company shall be as stated in Clause V of the Memorandum of Association.

(b) All shares of the Company shall, for the time being, be held by the Sole Member. Shares may only be transferred in accordance with the Act and the Single Member Companies Rules, 2003, including any requirement to convert the Company into a private/public company upon transfer of shares to more than one person.

(c) The Company shall not issue any invitation to the public to subscribe for its shares, and shall remain a private company at all times unless converted in accordance with law.

3. SOLE MEMBER AND DIRECTOR

(a) The Sole Member of the Company shall also act as the sole Director of the Company and shall exercise all powers and perform all functions and duties which may be exercised or performed by the Director(s) or by the Company in general meeting, subject to the Act and the Single Member Companies Rules, 2003.

(b) The Sole Member, in his/her capacity as sole Director, shall not require the presence of any other person to constitute a quorum for any meeting.

(c) All decisions of the Sole Member shall, within seven (7) days of being taken, be recorded in writing and dated, and entered in the minute book maintained under Rule 5 of the Single Member Companies Rules, 2003, in lieu of minutes of general or board meetings.

4. NOMINEE

(a) The Sole Member has, in accordance with Rule 4 of the Single Member Companies Rules, 2003, nominated [Nominee's full name], holder of CNIC No. [Nominee CNIC No.], S/O, D/O, W/O [Nominee's father's/husband's name], residing at [Nominee's address], as the person who, in the event of the death of the Sole Member during the subsistence of his/her membership, shall become the member of the Company.

(b) The Sole Member may, at any time, change the Nominee by giving notice in writing in the prescribed manner, and by filing the requisite form with the Registrar.

(c) On the death of the Sole Member, the Nominee shall, subject to production of the death certificate and compliance with the applicable Rules, be entitled to be registered as the member of the Company.

5. COMPANY SECRETARY

(a) The Company shall appoint a Company Secretary, who shall not be the same person as the sole Director, in accordance with the Act and applicable regulations. The first Company Secretary of the Company shall be [Name of Company Secretary].

(b) The Company Secretary shall perform such duties as are ordinarily performed by a company secretary under the Act, including maintenance of statutory registers and records, and filing of statutory returns with the Registrar.

6. SEAL

The Company may, by resolution of the Sole Member, adopt a common seal, the custody of which shall be with the Sole Member/Director, and the seal shall not be affixed to any instrument except by authority of the Sole Member.

7. ACCOUNTS AND AUDIT

(a) The Company shall keep proper books of account as required under the Act and shall prepare its financial statements in accordance with applicable accounting standards.

(b) The Sole Member shall appoint an auditor of the Company where required under the Act, and the auditor's report shall be attached to the financial statements filed with the Registrar.

8. DIVIDENDS

Subject to the provisions of the Act, the Sole Member may declare dividends out of the profits of the Company, and no dividend shall be paid otherwise than out of profits or as permitted by the Act.

9. BORROWING POWERS

The Sole Member, in his/her capacity as sole Director, may exercise all powers of the Company to borrow money, and to mortgage or charge its undertaking, property and uncalled capital, or any part thereof, and to issue debentures, subject to the Act.

10. WINDING UP

If the Company is wound up, the surplus assets remaining after payment of all debts and liabilities shall belong to the Sole Member, subject to the provisions of the Act.

11. INDEMNITY

Every officer of the Company shall be indemnified out of the assets of the Company against liability incurred by him/her in defending proceedings, whether civil or criminal, in which judgment is given in his/her favour, to the extent permitted by the Act.

We, the undersigned, being the Sole Member of the Company, do hereby adopt the foregoing as the Articles of Association of the Company.

Signature of Sole Member: _____ Date: [Date]

Witness Name: [Witness full name] CNIC: [Witness CNIC No.]

Witness Signature: _____